

Smt. Rama Devi v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 26 August 2014 · Writ-C No. 44580 of 2014 · **Writ disposed; respondent no. 2 to consider Clause 6.14 installments and decide bill correction within two months.**

HEADNOTE

A domestic consumer in arrears sought easy installments and bill correction. The Division Bench disposed of the writ by directing respondent no. 2, on a certified copy filed within 15 days with the consumer's claim, to examine the grievance, extend such installment benefits as may be permissible under Clause 6.14 of the Electricity Supply Code, 2005, and decide bill-correction within two months.

FACTUAL SUMMARY

Smt. Rama Devi, a domestic electricity consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., petitioned the Allahabad High Court after arrears accrued and payment was defaulted. Through counsel she offered to deposit the dues in easy installments and asked that the competent authority also correct her bill, submitting that both powers lay with respondent no. 2. Counsel for the Electricity Department appeared. The Division Bench heard the parties on a one-page writ and issued time-bound directions to that officer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for arrears

HOLDING

If the petitioner files a certified copy of this order before respondent no. 2 within 15 days along with her claim, that officer shall examine her grievance and extend such installment benefits as may be permissible under Clause 6.14 of the Electricity Supply Code, 2005, and shall decide the bill-correction grievance within two months. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A domestic consumer in arrears sought easy installments and bill correction. The Division Bench disposed of the writ by directing respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND QUANTUM OF ARREARS

Left to respondent no. 2 to decide the bill-correction grievance within two months. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER IN FACT QUALIFIES FOR CLAUSE 6.14 INSTALLMENTS

Installments to be extended only as may be permissible under Clause 6.14, not granted on the writ. ¶ 1